+Babbel

Privacy Policy

Manage settings

Who we are, and the purpose of this Privacy Policy:

This Privacy Policy ("Policy") explains the privacy practices of Babbel GmbH (Andreasstraße 72, 10243 Berlin, Germany) ("Babbel", "we," "us," "our") relating to your access and use of Babbel's services.
This Policy is designed to help you better understand how we collect, use, store or share any personal information about you (your "Personal Data"). It also describes your rights in relation to your Personal Data. Under data protection law, the term Personal Data refers to all information that relates to an identified or identifiable person. At Babbel, we only process Personal Data in compliance with applicable data protection laws and regulations. Babbel is responsible as controller for the data processing described in this Policy, unless stated otherwise. The term "controller" under data protection law refers to the entity which decides what to do with the Personal Data that has been collected, and how to do it.
We may update this Policy from time to time by publishing a new version on our website.

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1. On what basis do we process your Personal Data?

We process your Personal Data using the following legal bases:

(i) with your consent,

(ii) in order to provide services to you under the terms of a contract between you and Babbel, or, in order to enter into a contract between you and Babbel and at your request (e.g., when you sign up for a Babbel account),

(iii) for compliance by Babbel with a legal obligation, or

(iv) if the processing is necessary for the protection of our legitimate interests or the legitimate interests of a third party, unless your interests or fundamental rights and freedoms requiring the protection of your Personal Data override these.

2. What kinds of Personal Data do we use, and for what purposes?

At Babbel, we collect and use (process) your Personal Data in different ways, depending on how you interact with Babbel - whether you are a:

- User who uses Babbel to learn languages;
- User of the Toucan by Babbel add-on;
- Visitor to our websites;
- Contact person at a (prospective) B2B customer who enables the employees of the B2B customer to use Babbel;
- Job applicant who wants to join our team;
- Contact person at a service provider, supplier, business partner or a freelancer with whom we cooperate; or

- Visitor to our social media websites and/or apps.

For more details regarding the data processed in relation to each category, please see below.

2.1 Babbel Users

2.1.1 If you are a Babbel user, we process the Personal Data that you provide when you register with Babbel, when you complete your profile, sign up for a subscription, purchase other content or interact with a specific service. This includes, for example, your name and email address, device information, as well as your payment details (including bank information, account number and/or the card you use for payment). You may choose to provide us with your mobile number in order to use certain services.

This Personal Data is processed for the following purposes, and on the following legal bases:

- Registration for and provision of the Babbel language learning app and other services related to our learning platform;
- Booking, management and delivery of Babbel Live sessions;
- Support and communication: responding to requests from users;
- Processing payments.

Legal basis: Performance of a contract and/or pre-contractual measures

- Non-promotional communication on technical, security and contract-related topics (e.g. fraud alerts, account blocking or contract changes);
- Communication regarding product updates, new features as well as motivating users to learn;
- Invitation to give feedback or join our user research panel. As a panel member, we may invite you to participate in specific user research studies and interviews.

Legal basis: legitimate interest in ensuring the security and functionality of our services, promoting the use of our services, improving the user experience and increasing customer satisfaction.

- Conducting studies, research projects, interviews, as well as product and satisfaction surveys, including the related communication;

- Advertising of products and services of Babbel and its business affiliates.

Legal basis: consent (in situations where we have obtained consent from you); legitimate interest in (language) research, promoting sales, improving the user experience and increasing customer satisfaction in all other cases.

- Compliance with legal requirements and data retention obligations.

Legal basis: legal obligation

2.1.2 We process information about your learning behavior, personal vocabulary and learning progress. This includes content and (transcriptions of) voice recordings, if applicable, and if specifically mentioned below.

This Personal Data is processed for the following purposes, and on the following legal bases:

- Deploying the app and adapting our services to your needs and skills;
- Measuring your learning. For this purpose, voice recordings may be transcribed and the transcriptions may be processed, including with the help of AI;
- Reviewing your pronunciation. Voice recordings will be processed for this purpose, including with the help of AI. The processing of voice recordings is limited to the specific lesson, and the recordings are not used for any other purposes;
- Provision of conversational language learning features. When you use a learning feature that enables AI-powered real-time conversations, transcriptions of voice recordings will be processed. Voice recordings will only be shared with AI providers for transcribing purposes and will be deleted after transcription. The transcription itself can be stored and used for later conversations.

Legal basis: Performance of a contract and/or pre-contractual measures

- Selection of suitable users for studies, research projects, interviews, surveys and campaigns (no use of voice recordings for this purpose);
- Anonymization of voice recordings for speech analysis and further development of internal machine learning or other learning features;
- Training of our AI and quality assurance of the results (no use of voice recordings for this purpose);
- Personalizing your learning experience, including our conversational language learning features (transcriptions of voice recordings may be processed for this purpose, including with the help of AI).

Legal basis: legitimate interest in (language) research, the improvement and further development of our services, the use of data to optimize speech analysis, as well as training and quality assurance of our AI.

- Compliance with legal requirements and data retention obligations.

Legal basis: legal obligation

- Non-promotional communication regarding motivating users to learn

Legal basis: legitimate interest in improving the user experience, promoting sales and increasing customer satisfaction.

2.1.3 We process pseudonymized information about how you behave on our app. This includes server log files, IP addresses, and user IDs, some of which are assigned by or provided to third-party providers.

This Personal Data is processed for the following purposes, and on the following legal bases:

- Scientific research purposes for the areas of machine learning, artificial intelligence, natural language processing and deep learning (transmission to third parties only after prior anonymization);
- Ensuring the security, operability and stability of our services, including defense against cyber-attacks.

Legal basis: legitimate interest in the improvement and further development of our services and in ensuring the security, functionality and stability of our services, including defense against cyber attacks.

- To measure our reach and analyze user behavior to optimize our products, increase customer satisfaction and improve error analysis;
- Engaging in marketing and advertising activities on Babbel and on third-party services (therefore, persistent identifiers may be collected by, and/or transmitted by Babbel to, such third-party providers through our services via pixels, cookies and other tracking mechanisms);
- Tracking and conversion tracking to measure our reach and conversion rate tracking of our business affiliate partners.

Legal basis: consent (in situations where we have obtained consent from you); legitimate interest in acquiring new customers, improving the user experience, promoting sales, increasing customer satisfaction and calculating commissions in all other cases.

2.1.4 We process feedback and information you provide in studies, research projects, surveys or (video) interviews.

This Personal Data is processed for the following purposes, and on the following legal bases:

- Optimization of our products, increasing customer satisfaction and improving error analysis;
- Publication on our website and other marketing channels for promotional purposes;
- Research purposes for us and third parties (whereby the data is anonymized before publication and disclosure to third parties);
- Evaluation to determine whether you are eligible for further studies and research projects.

Legal basis: consent (in situations where we have obtained consent from you); Legitimate interest in (language) research, acquiring new customers, promoting sales, improving the user experience and increasing customer satisfaction in all other cases.

Duration of storage of Personal Data of study and research participants: Unless otherwise specified in the information on the applicable research study or project, we delete or anonymize the data processed for this purpose after one year at the latest.

2.1.5 We process information about how you interact with us when we send you notifications, e.g. push notifications or emails.

This Personal Data is processed for the following purposes, and on the following legal bases:

- Communication regarding motivating users to learn;
- Invitation to give user feedback and participate in our user research panel.

Legal basis: consent (in situations where we have obtained consent from you); legitimate interest in promoting the use of our services in all other cases.

2.1.6 If you get in touch with our customer support team (e.g. via email or our AI customer service chatbot “Bab”) or otherwise provide feedback to us, we process your contact data as well as the content of your inquiry and feedback. We will furthermore process metadata, such as

information on your subscriptions (including payment information) and information regarding your browser or the mobile device you are using when accessing our services.

This Personal Data is processed for the following purposes, and on the following legal bases:

- Provision of a fast, readily available means of contact;
- Responding to requests from users;
- Verifying that the inquiry was issued by a registered user and providing the necessary background information so that the chatbot (or customer service agents) can answer inquiries properly.

Legal basis: Performance of a contract and/or pre-contractual measures

- Anonymization of communication with users for the further usage by Babbel (e.g. for training our AI model for the "Bab" chatbot);
- Pseudonymization of feedback and inquiries to analyze customer experiences and improve our products and services.

Legal basis: legitimate interests in improving the user experience and increasing customer satisfaction as well as improving our products and services.

2.1.7 In case you use Babbel through your employer, we might process information about how you use our services in order to make this available to your employer in the form of usage reports. This includes, in particular, information about how often you use our app, what content you access via the app, and which live classes you have participated in.

This Personal Data is processed for the following purposes, and on the following legal bases:

- To provide employers with reports on usage of the Babbel services.

Legal basis: Transfers to your employer will only take place if the employer confirms to us that they are authorized to receive such reports and ensures that there is a legal basis for the transfer (e.g. a learning agreement or your consent). If you have any questions about this, please contact your employer.

2.2 Users of the Toucan by Babbel add-on

2.2.1 If you are a user of Toucan by Babbel, we process the Personal Data that you provide when you use the Toucan by Babbel add-on. This includes, for example, your name, email address and account information (including username and password). We usually collect this data ourselves. When you link, connect, or login to our services with a third-party service (e.g. Google or Facebook), you direct the service to send us information such as your registration and profile information as controlled by that service or as authorized by you via your privacy settings in that service.

This Personal Data is processed for the following purposes, and on the following legal bases:

- Registration for and provision of the Toucan by Babbel add-on and other services related to this add-on;
- Support and communication: responding to requests from users.

Legal basis: Performance of a contract and/or pre-contractual measures

- Non-promotional communication on technical, security and contract-related topics (e.g. fraud alerts, account blocking or contract changes);
- Communication regarding product updates and new features.

Legal basis: legitimate interest in ensuring the security and functionality of our services, promoting the use of our services, improving the user experience and increasing customer satisfaction.

- Conducting product and satisfaction surveys;
- Advertising of products and services of Babbel and its business affiliates.

Legal basis: consent (in situations where we have obtained consent from you); legitimate interest in promoting sales, improving the user experience and increasing customer satisfaction in all other cases.

- Compliance with legal requirements and data retention obligations.

Legal basis: legal obligation

2.2.2 We process pseudonymized information about how you behave on the Toucan by Babbel add-on. This

includes server log files, IP addresses, device type (such as phone, computer or tablet), browser type, date and time stamps, operating system, clickstream data, ad impressions and other information regarding your interaction with the services of the Toucan by Babbel add-on.

This Personal Data is processed for the following purposes, and on the following legal bases:

- Provision of the service and displaying the translations.

Legal basis: Performance of a contract and/or pre-contractual measures

- Ensuring the security, operability, and stability of our services, including defense against cyber attacks.

Legal basis: legitimate interest in ensuring the security, functionality and stability of our services, including defense against cyber attacks.

- To measure our reach and analyze user behavior to optimize our products, increase customer satisfaction and improve error analysis;
- To tailor features and content and to market and provide offers or promotions;
- Tracking and conversion tracking to measure our reach and conversion rate tracking of our business affiliate partners.

Legal basis: consent (in situations where we have obtained consent from you); legitimate interest in acquiring new customers, promoting sales, improving the user experience, increasing customer satisfaction and calculating commissions in all other cases.

2.3 Website Visitors

2.3.1 We process data you provide to us in contact forms about yourself or the company you work for, such as your name, email address and telephone number.

This Personal Data is processed for the following purposes, and on the following legal bases:

- Customer acquisition;
- Support and communication: storing and answering inquiries, which can reach us in various ways (e.g. via email or contact form).

Legal basis: legitimate interest in acquiring new B2B customers, communicating efficiently and increasing customer satisfaction.

2.3.2 Pseudonymized information about the device and browser you are using, server log files, your network connection, and your IP address.

This Personal Data is processed for the following purposes, and on the following legal bases:

- Ensuring the security, operability and stability of our services, including defense against cyber-attacks;
- Integration of third-party content (e.g. ratings, questionnaires);
- Technical provision of the functions in our interface for employer admins of B2B customers.

Legal basis: legitimate interest in ensuring the security, functionality and stability of our services, including defense against cyber attacks and the appealing design of our website.

2.3.3 Information about how you behave on our websites. This may include your IP address and user IDs, some of which are assigned by third-party providers, technical information regarding your device and your internet connection, non-precise geolocation as well as information on interactions with our websites, such as page views, click behavior and length of stay, technical characteristics of the end device and browser used and the origin of the website visit (e.g. referrer URL) (hereinafter also referred to as event data).

This Personal Data is processed for the following purposes, and on the following legal bases:

- To measure reach and analyze user behavior to optimize our websites, increasing customer satisfaction and analyzing errors;
- Conversion tracking to measure reach and determine commissions for our affiliate partners;
- Allowing our advertising partners to display personalized or contextual advertising and match user conversions to campaign events;
- Remarketing for acquisition purposes and new customer acquisition.

Legal basis: consent (in situations where we have obtained consent from you); legitimate interest in acquiring new customers, improving the user experience, increasing customer satisfaction and commission calculation in all other cases.

2.3.4 Information about how you behave on our websites, as described in 2.3.3. We process this data as a joint controller with several partners under the following conditions and for the following purposes:

- This includes the event data collected via pixel tracking as part of conversion tracking which is used for targeting our advertisements, improving ad delivery on third-party platforms (particularly social media platforms), personalizing features and content, and enhancing the advertisements of our products on third-party platforms. For this purpose, the event data collected on our website via the pixel is transmitted to and analyzed by the providers of these platforms (particularly social media platforms). The collection and transmission of event data are carried out jointly by us and the platform providers as joint controllers. For any processing of the transmitted event data that occurs after transmission, the platform providers (particularly social media platforms) act as sole controllers.
- Joint controllership is also relevant for data processing activities regarding advertising campaigns. In those cases, we transfer your personal data collected on our websites to our advertising partners, which then decide whether to display an advertisement and, if yes, which ad should be displayed on your device. We are jointly responsible with our advertisement partner regarding the collection of your personal data. However, we have no influence on further data processing activities by the advertisement partner.
- We have entered into agreements with the involved third-party providers that define the respective responsibilities. In those agreements, we normally agree that we are responsible for fulfilling the information obligations and that the third-party providers are (also) responsible for granting data subjects the rights under Articles 15 to 20 of the GDPR regarding the personal data they store. If you want to get further insights on what we specifically agreed with the respective third-party providers, please contact us directly.

For information regarding the purposes and legal bases of the data processing, please see 2.3.3.

2.4 Contact persons at (prospective) B2B customers who enable their own employees to use Babbel

2.4.1 We process data you provide to us about yourself and the company you work for, such as your name, email address and telephone number.

This Personal Data is processed for the following purposes, and on the following legal bases:

- Fulfillment of the contract with your company (e.g. to manage your account, for invoicing, following up on invoices);
- Registration on our admin portal;
- Support and communication: answering requests;
- Communication regarding product updates and new features, as well as information to motivate the users at your company.

Legal basis: legitimate interest in the fulfilment of the contract we have concluded with the company you work for, as well as promoting the use of our services and efficient communication.

- Conducting product and satisfaction surveys;
- Advertising of products and services of Babbel and business affiliates.

Legal basis: consent (in situations where we have obtained consent from you); legitimate interest in promoting sales, improving the user experience and increasing customer satisfaction in all other cases.

- To comply with legal requirements and data retention obligations.

Legal basis: legal obligations

2.4.2 If you get in touch with our team via email or our chatbot "Babbel Bot", we process your contact data as well as the content of your inquiry. The chatbot has AI-functions that serve primarily as a first point of contact in order to allocate your inquiry to a fitting customer support employee. Your interactions with our chatbot will not be used in order to train the AI system.

This Personal Data is processed for the following purposes, and on the following legal bases:

- Provision of a fast, readily-available means of contact;
- Respond to requests from contact persons at (prospective) B2B customers and allocate the inquiry to a fitting customer support employee;

- Verify if the inquiry was issued by a registered B2B customer.

Legal basis: legitimate interests in providing a fast, readily available means of contact in order to solve any issues and legitimate interest in establishing or fulfilling the contract we have concluded or will conclude with the company you work for.

2.4.3 We process data you provide us by participating in our B2B events. This includes your name, business email address and information about the company you are working for. It is possible that we take photos and videos of the event in which you are recognizable and post them online (e.g. on social media such as LinkedIn).

This Personal Data is processed for the following purposes, and on the following legal bases:

- Organization, execution and (internal and external) documentation of the event;
- Promotion of our events and products online.

Legal basis: consent (in situations where we have obtained consent from you); Performance of a contract and/or pre-contractual measures (in case you signed a model release contract with us); legitimate interest in the organization, execution, documentation and promotion of events.

2.5 Job Applicants

2.5.1 We process data that you provide to us as part of your job application, or that a recruiter provides to us, or that we collect during the application process. This includes information about your resume or curriculum vitae, your career to date and other data that you provide to us before or during the application process.

This Personal Data is processed for the following purposes, and on the following legal bases:

- Initiation of a current or future employment relationship. This includes, in particular, reviewing and checking your application documents, summarizing your application, forwarding your data internally to the relevant contact persons in the department, and all communication with you during the application process. To the extent permitted by applicable law, we may use AI-based tools to assist us in carrying out these tasks.

Legal basis: Performance of a contract and/or pre-contractual measures

- Fulfillment of legal storage obligations.

Legal basis: legal obligation

- In the situation where no employment relationship is established as a result of your job application, but you consent to our further storage of your information in case a suitable vacancy arises in the future.

Legal basis: consent

Duration of storage of Personal Data of applicants: If we are unable to offer you employment, we will retain the data you have provided to us for up to six months after any rejection for the purpose of answering questions in connection with your application and rejection. This time period does not apply if legal provisions prevent deletion, if further storage is necessary for the purpose of providing evidence or if you have expressly agreed to a longer storage period.

2.5.2 We process your contact information and your CV that we have received during the application process.

This Personal Data is processed for the following purposes, and on the following legal bases:

- To document who has applied for a job with Babbel.

Legal basis: legitimate interest in efficient application management and the traceability of applications received.

2.6 Contact person(s) at service providers, suppliers, business partners and freelancers

We process data you provide to us about yourself and/or the company you work for, such as your name, email address and telephone number.

This Personal Data is processed for the following purposes, and on the following legal bases:

- Performance of a contract with you or the company you work for and/or pre-contractual measures (this includes contract management, billing, and communication).

Legal basis: legitimate interest in the fulfilment of the contract we have concluded with the company you work for, as well as efficient organisation and communication.

- To comply with legal requirements and retention obligations.

Legal basis: legal obligations

2.7 Visitors to our social media pages

2.7.1 Controller

Social media provider

Data Processing

When you visit our social media pages (Facebook, Instagram, LinkedIn, TikTok), through which we present our company or individual products from our range, certain information about you as a visitor is processed.

More Information

Facebook and Instagram:

- Privacy Policy of Meta Platforms Ireland Limited
- Opt-out option

LinkedIn:

- Privacy Policy of LinkedIn Ireland Unlimited Company

TikTok:

- Privacy Policy of TikTok Technology Limited

2.7.2 Controller

Social media provider and Babbel (joint controller)

Data Processing

The social media providers collect and process event data and send us anonymized statistics and insights for our pages, which help us gain insights into the types of actions people take on our page (so-called “page insights”). These page insights are created based on certain information about people who have visited our site(s).

More Information

Facebook and Instagram:

- Joint Controller Agreement
- Data subject rights can also be asserted against Meta. You can find more information on this intheir privacy policy.

LinkedIn:

- Joint Controller Agreement
- Data subject rights can be asserted against LinkedIn via this contact form. You can contact their data protection officer via this link.
- LinkedIn and Babbel have agreed that the Irish Data Protection Commission is the lead supervisory authority overseeing processing for Page Insights. You can submit your complaint to the Irish Data Protection Commission (see www.dataprotection.ie) or to any other supervisory authority.

TikTok:

- Joint Controller Agreement
- Data subject rights can be asserted with TikTok via this form.
- TikTok and Babbel have agreed that the Irish Data Protection Commission is the competent supervisory authority to oversee the processing of Page Insights. You can lodge your complaint with the Irish Data Protection Commission (see www.dataprotection.ie) or with any other supervisory authority.

2.7.3 Controller

Babbel GmbH

Data Processing

We process information that you have provided to us via our social media page on the respective social media platform. This information may be the username used, contact details or a message to us.

More Information

We process this data based on our legitimate interest in contacting individuals who have asked us a question.

Legal basis: legitimate interest in efficient communication and increasing customer satisfaction.

Data processing for participation in sweepstakes: to determine winners and send prizes.

Legal basis: Performance of a contract and/or pre-contractual measures.

3. Your rights in relation to your Personal Data:

You have the right to exercise certain data subject rights under applicable laws. To exercise your data subject rights, please use the contact details available in this Policy.

Depending on the data protection laws that apply to you, you have at least the following rights:

- To ask for access to information confirming whether and, if so, to what extent we are processing Personal Data concerning you.
- To ask us to correct your Personal Data if it is incorrect or out of date.
- To ask us to delete your Personal Data.
- To ask us to restrict the processing of your Personal Data.
- To receive your Personal Data, which you have provided to us, in a structured, commonly used, and machine-readable format, and the right to transfer your Personal Data to another company.
- Where you have consented to a specific processing activity (i.e. a specific use by us of your Personal Data), you can, at any time, withdraw this consent. If you do withdraw your consent, the lawfulness of the processing that was based on that consent before it was withdrawn will not be affected.
- If you think that the processing of your Personal Data is not in compliance with data protection laws, you have the right to make a complaint about Babbel to the appropriate supervisory authority. We encourage you to contact us before raising a concern with the supervisory authority, to see if we can resolve any concerns that you have about our processing of your Personal Data.

If, and to the extent that, we process your Personal Data on the basis of a legitimate interest, in particular if we pursue our legitimate interest to conduct direct marketing or to apply profiling in connection with direct marketing, you have the right to object to such use of your Personal Data at any time. Profiling is

where you look at a person's interests, habits and behavior. Profiling for direct marketing often also involves predictions or assumptions about people. It can help us target our direct marketing messages.

If you object to the processing of your Personal Data for direct marketing purposes, we will promptly stop processing your Personal Data for these purposes. In all other cases, we will carefully consider your objection and stop further use of the information in question, subject to compelling reasons for further processing that may take precedence over your interest in objecting, or if we need to use the information for the justification, exercise or defense of legal claims.

If you exercise your data subject rights, we will process the transmitted Personal Data for the purpose of implementing these rights, and to be able to provide evidence of how your request was handled. We will only process data stored for the purpose of providing information and preparing it for this purpose and for data protection control purposes. We will otherwise restrict processing.

To protect your privacy and maintain security, we take steps to verify your identity before giving you access to your personal information or complying with a deletion, portability, or other related request. We may, in certain situations, reject your request for access, correction, or portability. For example, we may reject your request where you are unable to verify your identity.

4. Use of AI-Tools

Babbel uses AI tools for various purposes, as described below. Where there is more specific information on the use of AI tools in this Policy, this information takes precedence over this general AI section.

4.1 AI tools in our products and services

Babbel uses AI tools to operate, optimize and improve our services, and to provide you with new product features. Babbel uses AI tools in particular for the purposes of speech recognition and assessment of your speech, as well as converting audio to text and generating answers when you access a learning feature that enables AI-powered real-time conversations.

Personal Data is processed in this context. This applies in particular to data that you provide to us or that you input when using our features that are provided with the help of AI tools, including your voice, if applicable. This data is processed in order to generate content and to provide our speech assessment services to you. This data may also be used to train our AI and to further develop and optimize our services. We also reserve the right to analyze the usage data for quality assurance

purposes. However, we only use voice recordings in anonymized form for training purposes.

The AI tools are usually provided by vendors and connected to Babbel's systems via interfaces with such vendors. These vendors act as our processors and Babbel contractually requires that suitable technical and organizational measures are taken to protect the security of your Personal Data that is used in connection with the services of these vendors. In particular, this includes ensuring that the data is not disclosed to or processed for the (training) purposes of third parties or of the vendors. We only share voice recordings with AI providers for transcription purposes (if required for the provision of a language learning feature). Voice recordings are deleted immediately after transcription. For further information on how we use the voice recordings, please see 2.1.2.

Data processing for the purposes of providing our learning features, which may include speech assessment or feedback on your pronunciation, is based on contractual performance. Data processing for other purposes, in particular for training purposes, is based on our legitimate interest in optimizing our services.

4.2 Further use of AI tools in other processes

Our employees are supported by various AI tools that are used to efficiently structure and conduct their internal work tasks. These tasks include, among others, the creation, summary and translation of texts (e.g. in emails or documents) as well as research, brainstorming, knowledge management and (in specific cases) data analysis.

The AI tools are used without processing your Personal Data whenever possible. The input of Personal Data only takes place in specific, legally allowed use cases and only to the most minimal extent necessary, e.g. by our customer support team when translating or summarizing customer support chats or in data analysis projects.

The AI tools are provided by vendors that act as our processors or service providers. Babbel contractually requires that suitable technical and organizational measures are taken to protect the security of information - including your Personal Data, if applicable - that is used in connection with the services of these vendors. In particular, this includes generally ensuring that the data is not disclosed to or processed for the training purposes of third parties or the vendors themselves.

Data processing for those purposes is based on our legitimate interest in efficiently structuring and conducting our work and research as well as providing efficient customer support services.

5. Where do we process your data?

In principle, we process your data on European servers with the highest security standards. In providing our services, we are supported by external service providers to whom we may send your data. Some data processing may involve the transfer of certain Personal Data to “third countries”, i.e. countries outside of the European Economic Area, where the GDPR is not in force. Such a transfer is permissible if the European Commission has determined that an adequate level of data protection is provided in the relevant third country. This applies to all transfers to countries that are listed here: https://commission.europa.eu/law/law-topic/data-protection/international-dimension-data-protection/adequacy-decisions_en

If an adequacy decision of the European Commission does not exist, a transfer of Personal Data to a third country will only take place if appropriate safeguards exist, or if one of the conditions listed in Art. 49 GDPR is met. If you consent to the transfer of Personal Data to third countries, any such transfer will take place on that legal basis.

In all other cases, we use the EU standard contractual clauses as appropriate safeguards for the transfer of Personal Data to third countries that fall outside the scope of the GDPR. You have the possibility to obtain a copy of these EU standard contractual clauses, or to inspect them. To do so, please contact us.

6. How do we use “cookies” and other tracking technologies?

We use cookies and similar technologies on our website and in providing our services via our apps. We have compiled more information about how we use these technologies in our cookie banners. The banners are accessible from the footer of any of our websites. There you will also find a list of other companies that place cookies on our websites, a list of cookies that we place, and an explanation of how you can refuse certain types of cookies. In our mobile apps, you can access this information under Settings > Privacy in your profile.

7. How long do we store your data?

Unless otherwise stated, we only store Personal Data for as long as is necessary to achieve the processing purpose or to fulfill our contractual or legal obligations. Such statutory retention obligations may arise from commercial or tax law regulations. From the end of the calendar year in which the data was collected, we will retain Personal Data contained in our accounting records for eight to ten years and Personal Data contained in commercial letters and contracts for six years. In addition, we will retain data in connection with consents that require

evidence, as well as in connection with complaints and claims, for the duration of the statutory limitation periods in each case. We will delete data stored for advertising purposes if you object to processing for this purpose, and if it is not required for any other purpose.

Notwithstanding the other provisions of this section, we may retain your Personal Data where retention is necessary for Babbel to comply with a legal obligation, or to protect your vital interests or the vital interests of another natural person. Vital interests cover only interests that are essential for someone's life, and generally only apply to matters of life and death.

8. How can you contact us?

If you have any questions about this Policy or would like to exercise your data subject rights, please contact us at privacy@babbel.com.

You can reach our data protection officer as follows:

E-mail: privacy_ext@babbel.com

Herting Oberbeck Datenschutz GmbH

https://www.datenschutzkanzlei.de

9. Who do we share your personal information with, and why?

9.1 Hosting provider

Reason for the disclosure: We do not have our own servers. We engage certified service providers to host our systems.

9.2 IT service providers and SaaS providers

Reason for the disclosure: We engage the services of various service providers who act as processors to help us provide our services to you. The term "processor" under data protection law typically refers to any external company or individual that a controller (in this case, Babbel) gives instructions to, to handle their data for any purpose.

9.3 Advertising and marketing service providers

Reason for the disclosure: We want to provide an attractive product for our customers and convince more customers, advertise our products on third-party services to purchase our product. To do this, we work with a variety of advertising and marketing service providers.

9.4 Affiliated companies

Reason for the disclosure: We are a global company with cross-border and cross-company teams. Therefore, data transfer to our subsidiary (Babbel Inc., a company based in the United States of America) occurs.

9.5 Employers (only relevant to users who are authorized to use Babbel via their employer)

Reason for the disclosure: To inform the employer about the use of the Babbel services provided by them, but only if they are authorized to receive this data and can guarantee a legal basis for it.

9.6 Authorities

Reason for the disclosure: To comply with legal requirements or to respond to court orders or other similar governmental requests.

9.7 Payment provider

Reason for the disclosure: To process payments, we share your data with payment providers and banks that process your data as data controllers and processors.

9.8 Service providers

Reason for the disclosure: In addition, we may transfer your Personal Data to bodies such as postal and delivery services, our bank, tax consultancy/auditing firm or the tax authorities, as well as to service providers for the destruction of files.

10. Joint Controllership

As a global company, we work closely with Babbel Inc. based in the USA. If we are joint controllers of your Personal Data (joint controllership according to Art. 26 GDPR), you will be informed of this in the descriptions of the individual data processing operations below.

Controller

Babbel Inc. and Babbel GmbH

Data Processing

Data processing in connection with customer acquisition and lead generation in the USA

More Information

The data collection is carried out by both Babbel Inc. and Babbel GmbH. The technical and organizational measures are largely ensured by Babbel Inc. Data storage as well as the fulfillment of all other obligations of the GDPR are carried out by Babbel GmbH.

11. Legal basis according to the GDPR

11.1 Legal Basis: Consent

Relevant article of GDPR: Art. 6(1)(a) GDPR

11.2 Legal Basis: Performance of a contract and/or pre-contractual measures

Relevant article of GDPR: Art. 6(1)(b) GDPR

11.3 Legal Basis: Legal obligation

Relevant article of GDPR: Art. 6(1)(c) GDPR

11.4 Legal Basis: Legitimate interest

Relevant article of GDPR: Art. 6(1)(f) GDPR

ADDITIONAL COUNTRY OR REGION-SPECIFIC INFORMATION

Your rights may differ from country to country, or region to region. Here you can find out which country or region-specific deviations apply to you.

12. CALIFORNIA PRIVACY RIGHTS

The California Consumer Privacy Act of 2018 ("**CCPA**"), as amended by the California Privacy Rights Act of 2020, provides you with specific rights regarding your personal information (which is very similar to Personal Data described above). This section describes the rights that California consumers have and explains how to exercise those rights. To be clear, these rights are granted only to the extent that you are a California consumer and we are acting as a "business" under the CCPA with respect to your personal information.

12.1 Information We Collect; How We Collect It; How We Use It

The section in this Policy titled "What kinds of Personal Data do we use?" describes the Personal Data that we collect. The categories of such information are as follows:

12.1.1 Category

Identifiers

Examples

Name, email address, mobile number, online identifier, internet protocol (IP) address or other similar identifiers.

Purposes

To provide you with our services, to enhance our services and to retarget advertising to you.

12.1.2 Category

Commercial information

Examples

Records of products or services purchased; Purchasing or consuming histories or tendencies.

Purposes

To provide you with our services and to enhance our services.

12.1.3 Category

Internet or other similar network activity information

Examples

Browsing history, search history, information regarding consumer's interaction with a website, application, or advertisement.

Purposes

To provide you with our services, to enhance our services and to retarget advertising to you.

12.1.4 Category

Professional or employment-related information

Examples

Employer, employment history, resumes and curriculum vitae, background checks, and other employment-related information.

Purposes

To manage employees and applicants.

12.2 How We Use and Disclose Your Personal Information

We collect and disclose your personal information as follows:

12.2.1 Category

Identifiers

Source

Directly from consumers when interacting with our services

Disclose(d) to

Vendors, service providers and other third parties

Sell/Sold to

Third parties helping with retargeting advertising to you

Share(d) with

Third parties helping with retargeting advertising to you

12.2.2 Category

Commercial information

Source

Directly from consumers when interacting with our services

Disclose(d) to

Vendors and service providers

Sell/Sold to

Not “sold”, as defined under the CCPA

Share(d) with

Not “shared”, as defined under the CCPA

12.2.3 Category

Internet or other similar network activity information

Source

Directly from consumers when interacting with our services

Disclose(d) to

Vendors, service providers and other third parties

Sell/Sold to

Third parties helping with retargeting advertising to you

Share(d) with

Third parties helping with retargeting advertising to you

12.2.4 Category

Professional or employment-related information

Source

Directly from job applicants when interacting with our services

Disclose(d) to

Vendors and service providers

Sell/Sold to

Not “sold”, as defined under the CCPA

Share(d) with

Not “shared”, as defined under the CCPA

We may also disclose personal information in connection with a bankruptcy proceeding in relation to Babbel, or the sale, merger, or change of control of Babbel or the division responsible for the services with which your information is associated.

12.3 Rights to Your Information

12.3.1 Right to Know

As a California consumer, you have the right to ask us to tell you certain information about our collection, use, disclosure, or sale of your personal information. Once we receive and confirm your verifiable consumer request (see **Exercising Your Rights**, below), and subject to certain limitations that we describe below, we will give you this information. You have the right to ask for any or all of the following:

- The categories of personal information we collected about you;
- The categories of sources from which the personal information is collected;
- Our business or commercial purpose for collecting or selling that personal information;
- The categories of third parties with whom we share that personal information; and/or
- The specific pieces of personal information we collected about you.

12.3.2 Right to Delete

You have the right to ask us to delete any of your personal information that we collected from you and stored, with certain exceptions. Once we receive and

confirm your verifiable consumer request (see **Exercising Your Rights**, below), we will delete (and tell our service providers to delete) your personal information from our records, unless an exception applies. However, we may retain personal information that has been de-identified or aggregated. Additionally, we may deny your deletion request if retaining the information is necessary for us or our service provider(s) to perform certain actions that are legally required under CCPA, such as detecting security incidents and protecting against fraudulent or illegal activity.

12.3.3 Right to Data Portability

You have the right to ask for a copy of personal information that we have collected and maintained about you. You may ask for your information from us up to twice during a 12-month period. We will provide our response in a readily usable (and usually electronic) format.

12.3.4 Right to Correct

You have the right to ask us to correct any personal information we have about you.

12.3.5 Right to Opt Out of Selling or Sharing Your Personal Information

You have the right to opt out of the sale or sharing of your personal information, along with the right to opt in to the sale of such information. We do not sell or share the personal information of consumers we actually know are less than 16 years of age, unless we receive affirmative authorization (the "right to opt-in") from either the consumer who is less than 16 (but greater than 13) years of age, or the parent or guardian of a consumer less than 13 years of age. To our knowledge, we do not sell or share the personal information of minors under 16 years of age.

To exercise the right to opt out, you (or your authorized representative) can submit a request to us by visiting the following Internet Web page: "Do Not Sell or Share My Personal Information/Opt-out". We will also treat Global Privacy Control browser signals and other opt-out preference signals, as required by the CCPA, as valid opt-out requests.

12.3.6 Right to Non-Discrimination

We will not discriminate against you for exercising any of your CCPA rights, including but not limited to, by denying you goods or services or charging you different prices or rates for goods or services.

12.3.7 Exercising Your Rights

To exercise the rights described above, please contact us by using the following methods:

- Emailing us at privacy@babbel.com
- Visiting our consent and opt-out page.

After you send us certain requests, we may take steps to verify your identity (except for opt-out requests) so that we can properly respond and confirm that your request is legitimate and not fraudulent. To verify your identity, we may ask that you provide your name, email address, phone number, address, and relationship to us, so that we can check this information against the information in our records. Only you, or an agent legally authorized to act on your behalf, may make a verifiable request related to your personal information. If you are making a request as the authorized agent of a California consumer, we may ask you to send us reliable proof that you have been authorized in writing by the consumer to act on such consumer's behalf, such as a signed document.

13. OTHER U.S. STATE PRIVACY RIGHTS

Residents of Virginia, Colorado, Connecticut, Utah, Iowa, Texas, Oregon, Montana, New Hampshire, Delaware, Nebraska, New Jersey, Tennessee, Minnesota and other U.S. States with comprehensive consumer privacy laws that apply to Babbel (collectively, the "**State Laws**") have certain rights with respect to their personal information. The rights available to residents of these States are explained below, and are different based upon the State Laws that are applicable to us and to you. Such laws are being enacted and modified on a regular basis, so these rights are evolving.

The categories of personal information we process, our purposes for processing your personal information, the categories of personal information that we share with third parties, and the categories of third parties with whom we share it are explained in detail above.

13.1 Information We Collect; How We Collect It; How We Use It

The section in this Policy titled "What kinds of Personal Data do we use?" describes the Personal Data that we collect. The categories of such information are as follows:

13.1.1 Category

Identifiers

Examples

Name, email address, mobile number, online identifier, internet protocol (IP) address or other similar identifiers.

Purposes

To provide you with our services, to enhance our services and to retarget advertising to you.

13.1.2 Category

Commercial information

Examples

Records of products or services purchased; Purchasing or consuming histories or tendencies.

Purposes

To provide you with our services and to enhance our services.

13.1.3 Category

Internet or other similar network activity information

Examples

Browsing history, search history, information regarding consumer's interaction with a website, application, or advertisement.

Purposes

To provide you with our services, to enhance our services and to retarget advertising to you.

13.1.4 Category

Professional or employment-related information

Examples

Employer, employment history, resumes and curriculum vitae, background checks, and other employment-related information.

Purposes

To manage employees and applicants.

13.2 How We Use and Disclose Your Personal Information

We collect and disclose your personal information as follows:

13.2.1 Category

Identifiers

Source

Directly from consumers when interacting with our services

Disclose(d) to

Vendors, service providers and other third parties

Sold to

Third parties helping with retargeting advertising to you

13.2.2 Category

Commercial information

Source

Directly from consumers when interacting with our services

Disclose(d) to

Vendors and service providers

Sold to

Not “sold”, as defined under State Laws

13.2.3 Category

Internet or other similar network activity information

Source

Directly from consumers when interacting with our services

Disclose(d) to

Vendors, service providers and other third parties

Sold to

Third parties helping with retargeting advertising to you

13.2.4 Category

Professional or employment-related information

Source

Directly from job applicants when interacting with our services

Disclose(d) to

Vendors and service providers

Sold to

Not “sold”, as defined under State Laws

We may also disclose personal information in connection with a bankruptcy proceeding in relation to Babbel, or the sale, merger, or change of control of Babbel or the division responsible for the services with which your information is associated.

13.3 Rights to Your Information

In addition to the rights described in our Policy, the State Laws provide you with the following rights, except where indicated otherwise below:

- **Right to know:** You have the right to know whether we process your personal information and to access this personal information. You may also have the right to request that we disclose certain information to you about our collection, use, or disclosure of your personal information. Delaware residents have the right to obtain a list of the categories of third parties to which we have disclosed personal information.

- **Right to data portability:** You have the right to get a copy of your personal information that you previously provided to us or that we have obtained in a portable and, to the extent technically possible, readily usable format that allows you to transmit the data to another business without difficulty, where the processing is carried out by automated means.
- **Right to delete:** You may have the right to delete personal information that you have provided to us or that we have obtained about you. Please note that we may deny requests to delete if the requested deletion falls under an exception described in the applicable State Laws.
- **Right to opt out:** You may have the right to opt out of the processing of the personal information for purposes of: (i) targeted advertising; (ii) the sale of personal information; or (iii) profiling that produces legal or similarly significant effects concerning you.

As of the date of this Policy:

- We process personal information for the purposes of targeted advertising;
- We do not sell your personal information in exchange for monetary consideration; and
- We do not engage in profiling decisions based on your personal information that produce legal or similarly significant effects concerning you.

If you want to opt out of the processing of your personal information for any of the above purposes, and your state of residence provides for such opt-out right, please click here. We will also treat Global Privacy Control browser signals and other opt-out preference signals, as required by State Laws, as valid opt-out requests.

- **Right to correct.** Residents of certain states have the right to correct inaccuracies in their personal information, taking into account the nature of the personal information and the purposes for which we process it.
- **Right to nondiscrimination.** You have the right not to be discriminated against by us for exercising your privacy rights.

13.4 How to Exercise Your Rights; Verifying Your Identity

To exercise any of your State Law privacy rights, or if you have any questions about your privacy rights, you can contact us by:

- Emailing us at privacy@babbel.com
- Visiting our consent and opt-out page.

After you send us a request, we will take steps to verify your identity so that we can properly respond and/or confirm that your request is legitimate and not fraudulent. We may contact you for additional information as reasonably necessary to authenticate your request. if we are ultimately unable to authenticate your request using reasonable commercial efforts, then we may not be able to comply with it. Only you may make a verifiable request related to your personal information. If you are making a request as the parent or legal guardian of a person known to be a child, regarding the processing of that child's personal information, we may ask you to submit reliable proof of your identity.

13.5 Response Time; Your Right to Appeal

If we decide not to act on a request that you have submitted, we will inform you of our reasons for doing so, and, for residents of states where State Laws provide for an appeal process, we will provide instructions for how to appeal the decision. Residents of those states will have the right to appeal within a reasonable time after they have received our decision. We will notify you of any action taken or not taken in response to that appeal, including a written explanation of the reasons for the decisions. If we deny your appeal, we will provide you with a method for contacting your state's regulatory authority to submit a complaint.

14. FINANCIAL INCENTIVES

We may at times offer you financial incentives, including discounts, coupons, gift cards, or other rewards, for sharing Personal Data through programs that we may provide from time to time (collectively, our "Programs"). For example, we may offer you free products or discount codes for your participation in surveys or sweepstakes, for making reviews on our products, as part of invitations to events, or in relation to other offers. When we offer our Programs to you, we believe that the value of the different pricing or services you receive exceeds the cost of providing your Personal Data. Your participation in these Programs is completely optional and subject to the terms provided to you at the time you sign up. You may withdraw from participation in a Program at any time by contacting us using the designated method set forth in the applicable Program rules. You may also withdraw from or opt out of our Programs at any time by contacting us at privacy@babbel.com.

15. ADDITIONAL INFORMATION FOR RESIDENTS OF CANADA

Babbel collects, uses and discloses (in other words, processes) your Personal Data in connection with your access and use of our services in compliance with Canadian privacy laws, specifically the *Personal Information Protection and Electronic Documents Act* (PIPEDA) and relevant provincial privacy laws. This

Policy provides information regarding our practices and procedures for such processing and how we comply with these laws. In addition to the information provided above, please note the following.

15.1 Consent

We may obtain your consent to our collection, use and disclosure of your Personal Data either expressly, for stated purposes, or impliedly when the purposes are indicated by the relevant circumstances or follow logically from other stated purposes.

By providing us with your Personal Data, you consent to the collection, use and disclosure of that information relating to providing our services, managing our relationship with you, administering our business and as permitted or required by law, in accordance with this Policy.

We rely on the GDPR's "legitimate interests" rule as authorization to process your Personal Data where the circumstances and uses of such processing are known to or would be expected by you in connection with your access and uses of our services, in particular as set out in this Policy, provided that we will always seek your express, actively provided consent in instances where we propose to process your information for purposes of profiling, tracking, advertising or publication or if the information would be considered sensitive.

We will seek your consent before using Personal Data for any purpose beyond the scope of your original consent or our stated purposes.

You may withdraw your consent or request us to stop processing your Personal Data at any time, subject to legal and contractual restrictions and reasonable notice, by:

- Emailing us at privacy@babbel.com
- Visiting our consent and opt-out page.

15.2 Service providers outside of Canada

We may use service providers that are located outside of Canada. As a result, Personal Data under our custody or control may be accessible to regulatory authorities, courts and law enforcement outside of Canada in accordance with the laws of these jurisdictions. Subject to these laws, Babbel will use reasonable measures to maintain protections of your Personal Data that are equivalent to those that apply in Canada.

15.3 How can you contact us?

If you have any questions regarding this Policy or would like to exercise your rights, please contact us at privacy@babbel.com. You can reach our data protection officer at the following contact details:

Herting Oberbeck Datenschutz GmbH

https://www.datenschutzkanzlei.de

E-mail: privacy_ext@babbel.com

16. ADDITIONAL INFORMATION FOR RESIDENTS OF SWITZERLAND

If you are a data subject within the scope of the Swiss Federal Act on Data Protection (DSG), the information under this section applies additionally.

The legal references made in this Policy are also aimed at data subjects in Switzerland in accordance with the comparable provisions of the DSG. This applies in particular to the applicable rights of data subjects under Art. 25-29, 32 DSG.

Data processing also takes place outside Switzerland. This applies in particular to the countries of the European Economic Area and the USA. We guarantee an appropriate level of data protection. This is ensured by:

- an established adequate level of data protection in accordance with Art. 16 para. 1 DSG for the recipient country;
- standard data protection clauses that the EDÖB has approved, issued or recognized in advance, in particular the standard contractual clauses of the European Commission; or
- an international treaty in which an adequate level of data protection is regulated.

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